

		Moving parties, however, do not show Lynch’s ability to comply with the court’s 2/20/26 sanctions order. In fact, Lynch shows he is unable to pay the sanctions order. (See Lynch Decl. ¶¶ 3-11, Exh. 3 [re inability to work and income insufficient to cover monthly costs].) As such, moving parties have not shown willful disobedience, a prerequisite for a contempt order. Moreover, a sanctions order is enforceable in the same was as a “money judgment”. As such, contempt does not appear to be appropriate here. In sum, the motion is DENIED. Moving parties to give notice.
10	Torres vs. Northgate Gonzalez Markets, Inc	<u>Motion for Spoliation Sanctions</u> The court DENIES Plaintiff JAVIER NAVARRO TORRES’s Motion for Spoilation Sanctions against Defendant NORTHGATE GONZALEZ, LLC. <i>Sanctions for Spoilation of Evidence</i> The court may impose sanctions against anyone engaging in conduct that is a misuse of the discovery process. (See Code Civ. Proc., § 2023.030.) Sanctionable discovery abuses include, among other things, spoliation of evidence. (<i>Dept. of Forestry & Fire Protection v. Howell</i> (2017) 18 Cal.App.5th 154, 191, disapproved of on other ground by <i>Presbyterian Camp & Conference Centers, Inc. v. Superior Court</i> (2021) 12 Cal.5th 493.) Spoliation of evidence “is defined as the destruction or alteration of relevant evidence or the failure to preserve evidence for another party’s use in pending or future litigation.” (<i>Victor Valley Union High School District v. Superior Court</i> (2023) 91 Cal.App.5th 1121, 1139 [citing other cases].) “[T]he party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or